

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT’S MOTION TO CORRECT THE RECORD
AND FOR OTHER RELIEF**

Complainant, Baltic Auto Shipping, Inc. ("Baltic"), by and through its attorney, Marcus A. Nussbaum, Esq., hereby moves, Pursuant to FMC Rules, 69, 71, and 141(k) to correct the record with the respect to the Commission’s Notice Denying Extension of Time of August 17, 2017. Complainant additionally moves to strike respondents’ opposition to complainant’s Motion For A Stay of Proceedings (purportedly filed on August 22, 2017 but actually untimely filed on August 23, 2017) to the extent that by requesting (by email) that the Office of the Secretary accept late filing, that respondents have improperly requested relief from the Commission by email, in violation of the Commission’s Rules of Procedure mandating that affirmative relief be sought by motion.

Complainant further moves to strike respondents’ opposition to complainant’s Motion For A Stay of Proceedings on the basis that despite its nomenclature, said filing is an unauthorized sur-reply to complainant’s reply to Respondents’ Petition Regarding Attorneys Fees.

As set forth below, while styled as an opposition to complainant’s Motion For A Stay of

Proceedings, counsel for respondents has filed an unauthorized ‘sur-reply’ to complainant’s reply to respondents’ Petition Regarding Attorneys Fees, without prior leave of the Commission, without any effort to comply with the obligation to confer, and addressed almost exclusively to issues that could and should have been addressed in their Petition for fees. As further set forth below, on August 23, 2017 respondents made an improper email request to the Office of the Secretary which sought the affirmative relief of asking that their untimely filing be accepted and deemed served *nunc pro tunc*, to the extent that said filing was dated August 22, 2017.

The Notice Denying Extension of Time of August 17, 2017 Contains a Factual Misstatement

With respect to the Notice Denying Extension of Time, said Notice incorrectly explains that “[o]n August 16, 2017, Complainant filed its Second Motion for an Extension of Time.” The Commission is respectfully asked to confirm that said filing was in fact *received* by the Office of the Secretary at approximately 10:36 p.m. on August 15, 2017. The cover email reflecting said filing is annexed hereto as Appendix “1”. The Commission is also respectfully asked to note that on the Commission’s docket, Document No.: 102 notes that the filing was served on August 15, 2017.

Respondents’ Unauthorized Sur-Reply to Their Petition for Regarding Attorneys Fees Should Be Stricken

On August 22, 2017, at approximately 11:22 p.m. complainant filed the confidential and public versions of its Reply to Respondents’ Petition Regarding Attorney Fees and Request for an Evidentiary Hearing (a copy of the cover email for said filing is annexed hereto as Appendix “2”) in compliance with the Commission’s Notice Denying Extension of Time.

On August 22, 2017 at 11:49PM, and 24 minutes after complainant’s filing, respondents purported to file and serve an opposition to complainants’ motion for a stay of proceedings, which contained an unreadable PDF file of with a size of zero kilobytes (a copy of the cover email for said filing is annexed hereto as Appendix “3”).

On August 23, 2017 at about 6:00 p.m. the undersigned was copied on an email to the Office of the Secretary which contained a twelve (12) page brief with approximately forty-two (42) pages of attachments from respondents' counsel Jon Werner, which purported to be an opposition to complainants' motion for a stay of proceedings, and which also purported to be a correction to a "technical error" by respondents who allegedly filed said opposition the day prior. Annexed hereto as Appendix "4" for the Commission's reference is a copy of the cover email from Werner wherein he apologizes for the fact that the file attached to his prior email of August 22, 2017 "...was not working...". To the extent that the document contains a date of August 22, 2017, Werner's email to the Office of the Secretary can only be construed as a request for affirmative relief by email and not by motion, wherein respondents request that said document be deemed filed and served *nunc pro tunc*.

To the extent that the Commission, in its Notice Denying Extension of Time had also already explained that the Commission will issue a separate Order addressing Complainant's request for a stay of the proceedings, respondents' filing can only be construed as a sur-reply to complainant's reply to respondents' Petition Regarding Attorneys fees, in that the Commission had already made clear that it would decide the issue of the request for the stay.

In the first instance, and inasmuch as the Commission has already been fully briefed on the "sharp practice" and litigation tactics employed by respondents and their counsel¹ it should be noted that Werner's email to the Commission of August 22, 2017 with an unreadable PDF file was

¹ On the issue of sharp practice of respondents and their counsel, the Commission is also respectfully referred to Complainant's Motion to Supplement the Record (Document No.: 101) in the Matter of *Ovchinnikov et al. v. Michael Hitrinov et al.* (FMC Docket No.: 15-11), which contains a Certification from Maria Temkin filed in the matter of *Ardak Akishev et al. v. Sergey Kapustin et al.*, U.S.D.C. — D.N.J. Docket No.: 1:13- cv- 07152-NLH-AMD. Ms. Temkin explains in detail the efforts taken by respondents and their counsel to, among other things, engage in witness tampering and collude with defendant therein, Sergey Kapustin to induce him to interfere with the orderly litigation of that matter. Mr. Kapustin admits to having been solicited by respondents' counsel herein, Jon Werner, for that purpose.

no mere “technical error”², but rather, a contrivance by respondents for purposes of making it appear that their opposition to the motion for a stay had been timely filed, while allowing themselves the opportunity to review complainant’s Reply to Respondents’ Petition Regarding Attorneys Fees prior to interposing their opposition to the motion for a stay.

Additionally, Respondents’ apparent motive for allowing themselves the opportunity to review complainant’s Reply was for purposes of interposing additional arguments in further support of their Petition Regarding Attorneys Fees, and on this basis alone, it is respectfully submitted that the Commission and Office of the Secretary may reject said submission in its entirety as untimely and improper.

Putting aside obvious nomenclatural issues presented by respondents’ ‘sur-reply’, said filing should be struck because it is offered without leave of the Commission and contains material that is "redundant, immaterial, impertinent, or scandalous." F.R.C.P. 12(f). Further, and to the extent that respondents’ improper Reply to a Reply is considered, FMC practice requires that pursuant to the Commission’s Rules of Practice and Procedure Rule 254 regarding Attorney Fee Petitions, complainants, as ‘non-movants’, be given the "last word."

Although the FMC Rules do not specifically address motions to strike, such motions have been accepted by the Commission. See, e.g., The Auction Block Co. v. City of Homer, SRR 107 (ID 2013), affirmed 33 S.R.R 589 (FMC 2014) (granting a motion to strike and for sanctions); Save on Shipping v. PRMSA, 27 SRR 151 (FMC 1995) (granting motion to strike); Green Master International Freight Services, Ltd., 29 SRR 1303 (FMC 2003) (same).

Complainant also notes that respondents’ ‘sur-reply’ is replete with statements about the undersigned that are "immaterial, impertinent, or scandalous" (or all three). These should be struck

² Annexed hereto as Appendix “5” is a printout from the website of Werner’s law firm, which explains that before becoming a lawyer, Werner worked for a number of years in the IT industry. In light of Werner’s self-professed expertise in the IT industry, it is difficult, if not impossible to believe that the emailing of a zero kilobyte file was an error.

in accordance with F.R.C.P. 12(f). See, Save on Shipping, *supra* (striking material that was "immaterial and needlessly provocative").

A review of respondents' unauthorized sur-reply further indicates that most, if not all of the argument contained therein (if it can reasonably be construed as such) is geared towards replying to arguments made by complainant in opposition to respondents' Petition Regarding Attorneys Fees, and specifically on the issue of respondents' waiver of the right to seek costs and fees in this matter (the existence of which respondents conveniently ignored in their Petition). The balance of respondents' sur-reply appears to be Werner's emotional venting to the extent that it contains personal *ad hominem* attacks against the undersigned.

To the extent that respondents' counsel:

- A. Improperly requested by email that the Secretary accept respondents' untimely filing (backdated to August 22, 2017) and deem said filing served *nunc pro tunc*;
- B. Made a request for affirmative relief from the Commission, without any effort to comply with the obligation to confer;
- C. Filed respondents' purported opposition to complainant's Motion for a Stay of Proceedings after the Commission had already made clear that it would decide the issue of the request for the stay;
- D. Filed a purported opposition to complainant's Motion for a Stay of Proceedings which, despite its nomenclature is in actuality a sur-reply to their Petition for Fees and is addressed almost exclusively to issues that could and should have been addressed in their Petition; and
- E. Never requested, sought, or obtained leave of the Commission to interpose a sur-reply to their Petition for fees;

it is respectfully requested that the Commission reject respondents' unauthorized sur-reply in its entirety, and neither afford nor accord same any consideration whatsoever in deciding complainant's instant Motion for a Stay of Proceedings.

Respondents' Improper Reference to Other Motions

Peculiar to their misguided and unethical methods of practice, respondents continue to file submissions with the Commission on one motion, which makes reference therein to other filings made with the Commission. By example, and within their instant opposition to complainant's motion for a stay of proceedings, improper reference is made therein to emails annexed as exhibits to complainant's reply to respondents Petition for Attorneys Fees.

With regard to Mr. Werner's attempt to conflate separate filings pending before the Commission, and accompanying typical attempt to make further "unauthorized" argument on submissions previously made, complainants' counsel will not, as has Mr. Werner, attempt to argue other motions in the context of complainant's instant requested narrow relief to correct the record and to strike respondents' unauthorized sur-reply.

A final point for the Commission's consideration, to the extent that respondents' filing is construed to be an 'opposition' to a non-dispositive motion pursuant to Rule 71 is that respondents have exceeded the ten (10) page limit set forth within said Rule. Accordingly, said filing should be disregarded.

Efforts to Confer Regarding Complainant's Instant Requested Relief

On August 27, 2017, the undersigned contacted respondents' counsel by email to confer regarding their consent or lack thereof to complainant's instant requested relief. On August 30, 2017, the undersigned contacted respondents' counsel for a second time regarding complainant's instant requested relief. Copies of the email correspondence are annexed to Complainant's Status Report of this date, submitted contemporaneously herewith. Despite the various correspondence exchanged between the parties since August 27, 2017, respondents have failed to provide a substantive response as to their consent or lack thereof.

WHEREFORE, based upon the foregoing, it is respectfully submitted that the Commission should now grant complainant's motion to correct the record in its entirety; and grant complainant's motion to strike respondents' unauthorized sur-reply to their Petition Regarding Attorneys Fees of August 23, 2017, made in the guise of an opposition to complainant's Motion For A Stay of Proceedings, together with such other and further relief as may be just and proper under the circumstances.

Dated: August 31, 2017
Brooklyn, New York

Respectfully Submitted,

A handwritten signature in black ink, appearing to read "Marcus A. Nussbaum", written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainant

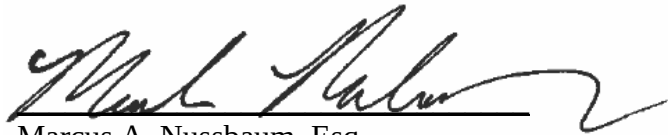
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF** and **APPENDIX** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', is written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
August 31, 2017